

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

-----X
CARLVIN JOHNSON,

Plaintiff,

-against-

THE CITY OF NEW YORK and POLICE OFFICER ADAM
KEEGAN,

Defendants.
-----X

**VERIFICATION
PURSUANT TO
PART 130**

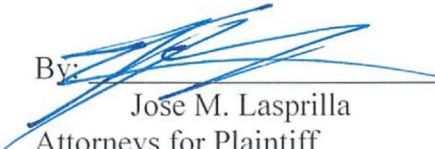
Index No.:

The accompanying papers are served/filed/submitted pursuant to §130-1.1-a.:

☒ SUMMONS & VERIFIED COMPLAINT

Dated: Brooklyn, New York
May 2, 2019

TALISMAN & DELORENZ, P.C.

By: 

Jose M. Lasprilla

Attorneys for Plaintiff

362 Knickerbocker Avenue

Brooklyn, New York 11237

(718) 602-3330

File No.: 8108

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

-----X

CARLVIN JOHNSON,

Plaintiff,

-against-

THE CITY OF NEW YORK and POLICE OFFICER
ADAM KEEGAN,

Defendants.

-----X

Index No.:

Date Purchased:

SUMMONS

Plaintiff designates New York
County as the place of trial.

The basis of venue is based
upon the County of
occurrence.

To the above named Defendants:

You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the plaintiff's attorneys within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: Brooklyn, New York
May 2, 2019

TALISMAN & DELORENZ, P.C.

Attorneys for Plaintiff
362 Knickerbocker Avenue
Brooklyn, New York 11237
(718) 602-3330
File No. 8108

COUNTY OF NEW YORK

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CARLVIN JOHNSON,

Date Purchased:

Index No.:

Plaintiff,

VERIFIED COMPLAINT

-against-

THE CITY OF NEW YORK and POLICE OFFICER
ADAM KEEGAN,

Defendants.

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Plaintiff, by and through his attorneys, **TALISMAN & DELORENZ, P. C.**,
complaining of the defendants, alleges, upon information and belief, as follows:

1. That this action falls within one or more of the exceptions set forth in CPLR §1602.
2. That on September 23, 2018, and at all times hereinafter mentioned, defendant, THE CITY OF NEW YORK, is a municipal corporation, duly organized and existing under and by virtue of the laws of the State of New York.
3. That on September 23, 2018, Police Officer ADAM KEEGAN, was in the employ of defendant, THE CITY OF NEW YORK.
4. That on December 20, 2018, a Notice of Claim was duly presented on behalf of the plaintiff to the defendants within 90 days after the cause of action alleged herein accrued; that at least 30 days have elapsed since said demand was presented to the defendants for adjustment and they have neglected or refused to make any adjustment or payment thereof, and that this action was commenced within one year after its accrual.
5. That on February 25, 2019, pursuant to General Municipal Law, a 50-H hearing of the plaintiff's claims was held.

6. That on or about September 23, 2018, defendant, POLICE OFFICER ADAM KEEGAN, while in the employ of defendant, THE CITY OF NEW YORK, stopped the plaintiff, while he was operating his motor vehicle on Water Street, New York, New York. Said police officer did, under the color of law, willfully, negligently and with reckless disregard for the safety of the plaintiff, falsely arrest, abuse - both physically and psychologically, imprison, detain, handcuff, assault, confine, deprive basic certain civil, constitutional and human rights and caused plaintiff to lose freedom as a result of the negligence, gross negligence and recklessness of the defendants in violation of 42 USC 1983. Said police officer handcuffed plaintiff with one handcuff, as opposed to two handcuffs, which is customary for husky individuals. The handcuffs were placed very tightly around plaintiff's left wrist. When plaintiff complained about the handcuffs, he was instructed by defendant, POLICE OFFICER ADAM KEEGAN, to get into the police van. Upon arrival at the processing area of the First Precinct, a nurse examined plaintiff's his left wrist and noted swelling. After approximately 12-15 hours, plaintiff was transferred to Central Booking, without ever receiving medical attention. Plaintiff was thereafter released from Central Booking after approximately 48 hours.

7. On September 25, 2018, the plaintiff returned to the First Precinct to obtain his belongings that were taken from his vehicle on September 23, 2018. While speaking with the Property Clerk, defendant, POLICE OFFICER ADAM KEEGAN, passed by the plaintiff and he exchanged words with the plaintiff. Defendant, POLICE OFFICER ADAM KEEGAN, then flung plaintiff's property to the floor, damaging its contents. Defendant, POLICE OFFICER ADAM KEEGAN, then claimed the plaintiff crossed a line that civilians were unable to cross and shoved the plaintiff into a door. The plaintiff reflexively put up his hands, and contact was made to his injured wrist. This contact further injured and/or aggravated the plaintiff's wrist.

8. Such injuries to the plaintiff arose solely as a result of the recklessness, gross negligence and negligence of the defendant, THE CITY OF NEW YORK, in its selection, hiring, overseeing, training and retention of its employees, including defendant, POLICE OFFICER ADAM KEEGAN.

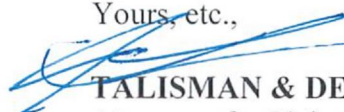
9. As a result of the recklessness and negligence of the defendants, acting by and through their employees, members of the New York City Police Department, plaintiff was unjustifiably and unlawfully arrested, detained, assaulted, confined, falsely imprisoned and was caused to suffer a loss of freedom, liberty and civil rights, as well as psychological abuse and physical and psychological injuries, and embarrassment and injury to his reputation in the community.

10. That as a result of the foregoing, the plaintiff was caused to sustain serious injuries and to have suffered pain, shock and mental anguish; that these injuries and their effects will be permanent; and as a result of said injuries, the plaintiff has been caused to incur and will continue to incur expenses for medical care and attention; and, as a further result, he was and will continue to be rendered unable to perform his normal activities and duties and has sustained a resultant loss therefrom.

WHEREFORE, plaintiff demands judgment against the defendants in an amount which exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction, together with the costs and disbursements of this action.

Dated: Brooklyn, New York
May 2, 2019

Yours, etc.,



TALISMAN & DELORENZ, P.C.

Attorneys for Plaintiff

362 Knickerbocker Avenue

Brooklyn, New York 11237

(718) 602-3330

File No.: 8108

ATTORNEY'S VERIFICATION

STATE OF NEW YORK)
 : ss.:
COUNTY OF KINGS)

JOSE M. LASPRILLA, being duly sworn, deposes and says:

That deponent is the attorney for the plaintiffs in the within action; that deponent has read the foregoing **SUMMONS AND VERIFIED COMPLAINT**, and knows the contents thereof; that the same is true to deponent's own knowledge except as to the matters therein stated to be alleged upon information and belief, and as to those matters deponent believes it to be true and the reason that this verification is not made by plaintiff and is made by deponent is that plaintiff is not presently in the county where the attorneys for the plaintiff have their office.

Deponent further says that the source of deponent's information and the grounds of deponent's belief as to all matters not stated upon deponent's knowledge are from investigations made on behalf of said plaintiffs.

Dated: Brooklyn, New York
May 2, 2019


JOSE M. LASPRILLA

Index No.:

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

CARLVIN JOHNSON,

Plaintiff,

-against-

THE CITY OF NEW YORK and POLICE OFFICER ADAM KEEGAN,

Defendants.

SUMMONS & VERIFIED COMPLAINT

TALISMAN & DELORENZ, P.C.

Attorneys for Plaintiff

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